

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 27, 2026
8:30 AM/1:30 PM

16. MACINNAH VIDMAR V. SHELDON WILSON

26FL0408

Respondent filed a Request for Order (RFO) on May 27, 2026, seeking child custody and support orders. Respondent did not file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on July 16, 2026, with a review hearing on August 27th. There is no Proof of Service showing Petitioner was properly served.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on July 16, 2026, and mailed to the parties the same day.

The court finds good cause to proceed with the custody portion of RFO only. The court finds the parties' agreement to be in the best interests of the minors. The court adopts the agreement as set forth in the July 16th CCRC report as its order.

The court drops the request for child support from calendar. First, Respondent did not properly serve Petitioner. Second, Respondent failed to file an Income and Expense Declaration. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Last, the parties continue to cohabitate, and therefore, a support order is not appropriate at this time.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CUSTODY PORTION OF RFO ONLY. THE COURT FINDS THE PARTIES' AGREEMENT TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE JULY 16TH CCRC REPORT AS ITS ORDER.

THE COURT DROPS THE REQUEST FOR CHILD SUPPORT FROM CALENDAR. FIRST, RESPONDENT DID NOT PROPERLY SERVE PETITIONER. SECOND, RESPONDENT FAILED TO FILE AN INCOME AND EXPENSE DECLARATION. "FOR ALL HEARINGS INVOLVING CHILD, SPOUSAL, OR DOMESTIC PARTNER SUPPORT, BOTH PARTIES MUST COMPLETE, FILE, AND SERVE A CURRENT INCOME AND EXPENSE DECLARATION." CAL. RULE CT. 5.260(1); SEE ALSO CAL. FAM. CODE §2100. THE PARTY REQUESTING

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SUPPORT SHALL FILE AND SERVE THEIR INCOME AND EXPENSE DECLARATION WITH THE INITIAL MOVING PAPERS. EL DORADO SUP. CT. RULE 8.03.01. LAST, THE PARTIES CONTINUE TO COHABITATE, AND THEREFORE, A SUPPORT ORDER IS NOT APPROPRIATE AT THIS TIME.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07

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17. MARIYA VYCHRESTOVA V. MARK GARCIA

26FL0514

Petitioner filed a Request for Order (RFO) on June 3, 2026, requesting child custody and parenting plan orders, as well as orders for child support and alcohol and drug testing. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on July 16, 2026, and a review hearing on August 27, 2026. Respondent was mail served with Notice and Acknowledgment of Receipt on July 1, 2026.

Both parties attended CCRC on July 16, 2026. It appears from the CCRC report that parties reached a full agreement. A report with the parties' agreement was prepared on July 16, 2026, and mailed to the parties on July 17th.

Respondent filed an Income and Expense Declaration and a Response to the Petition for Custody and Support on July 29, 2026. Petitioner was served by mail on July 31, 2026.

The court has read and considered the filings as outlined above. The court adopts the agreements as set forth in the July 16th CCRC report as they are in the best interest of the minor.

Utilizing the figures from the parties' Income and Expense Declarations with a 50% time share, the court finds guideline child support to be \$407 per month payable from Respondent to Petitioner (see attached X-spouse). The court orders Respondent to pay Petitioner \$407 per month as and for guideline child support effective July 1, 2026, and payable on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$814 for the months of July and August. The court orders Respondent to pay Petitioner \$203.50 per month as and for arrears beginning September 15, 2026, and payable on the 15th of each month until paid in full (approximately four months). If there is any missed or late payment the full amount is due and owing with legal interest.

In addition to the foregoing monthly support payments, the parties are ordered to equally share in any uninsured medical care costs for the minor, childcare costs when such costs are incurred as a result of employment or necessary education for employment, and agreed upon extracurricular activities. The parties are ordered to follow the procedures as set forth in the attached FL-192.